HIGH COURT OF MADRAS

JUDICIAL APPELLATE JURISDICTION

CASE NO: Criminal Revision No. 312 of 2021 (YEAR: 2022)

CORAM: N. ANAND VENKATESH

State of Tamil Nadu
... Appellant(s) / Petitioner(s)
Versus
Cyber Phishing Syndicate
... Respondent(s)

Acts Referred:	Information Technology Act, 2000, Indian Penal Code, 1860
Sections:	Section 43 IT Act, Section 66C IT Act, Section 66D IT Act, Section 420 IPC

JUDICIAL HEADNOTE & SUMMARY

Affirmed the framing of charges under Sections 66C and 66D of the IT Act along with Section 420 IPC for orchestrating fraudulent spoofed banking portals to harvest login credentials.

RATIO DECIDENDI

The Court held that: Affirmed the framing of charges under Sections 66C and 66D of the IT Act along with Section 420 IPC for orchestrating fraudulent spoofed banking portals to harvest login credentials. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in State of Tamil Nadu v. Cyber Phishing Syndicate (Criminal Revision No. 312 of 2021) were adjudicated before the High Court of Madras. The matter arose out of claims and contentions concerning Information Technology Act, 2000, Indian Penal Code, 1860, particularly Section 43 IT Act, Section 66C IT Act, Section 66D IT Act, Section 420 IPC. Affirmed the framing of charges under Sections 66C and 66D of the IT Act along with Section 420 IPC for orchestrating fraudulent spoofed banking portals to harvest login credentials.

OPERATIVE ORDER

ORDER: Decided